

Kathryn N. Nester (UT #13967)
NESTER LEWIS PLLC
40 S 600 E
Salt Lake City, UT 84102
Telephone: (801) 535-4375
Email: kathy@nesterlewis.com

Richard G. Novak, *pro hac vice*
RICHARD G. NOVAK, APLC
65 North Raymond Avenue, Suite 320
Pasadena, CA 91103
Telephone: 626-578-1175

Michael N. Burt, *pro hac vice*
LAW OFFICE OF MICHAEL BURT PC
1000 Brannan Street Suite 400
San Francisco, California 94103
Telephone: 415-522-1508

Staci Visser (14358)
BROWN, BRADSHAW & MOFFAT
422 N 300 W
Salt Lake City, UT 84103
Telephone: 801-532-5297

Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT

IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT TYLER JAMES ROBINSON'S RESPONSE TO REQUEST FOR NOTICE OF MOTION TO CLOSE JUDICIAL PROCEEDINGS AND RECORDS Case No. 251403576 Honorable Tony F. Graf, Jr.
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Defendant, Tyler James Robinson (“Mr. Robinson”), by and through undersigned counsel, hereby files this response to the Request for Notice of Motions to Close Judicial Proceedings and Records filed by *Deseret News, et al.*, on October 30, 2025.¹ Doc 150. Mr. Robinson does not object to providing the notice required by law and under the guidance of the Utah Supreme Court. However, the requests made by *Deseret News, et al.*, are overly broad and burdensome to the parties. The Court should strictly interpret the notice requirements, particularly given the ease of public access to criminal court filings in Utah.

DISCUSSION

Deseret News, et al., requests:

. . . notice of and to be served with any petitions, motions, or requests to seal, close, or limit public or press access to any proceeding in this matter, as well as any court record classified as public, including limitations on electronic media coverage, and that counsel for the News Media be afforded an opportunity to be heard and make argument to the Court prior to any such closure.

Request, at 1. Mr. Robinson addresses each component of this request in turn.

I. Mr. Robinson Will Comply with the Notice Requirements in Utah Rule of Judicial Administration 4-202.04 and Related Law.

Deseret News, et al. requests notice of particular filings pursuant to Utah Rule of Judicial Administration 4-202.04(4) (“Rule 4-202.04”) and Utah Supreme Court case law examining media access to criminal proceedings and filings. However, Rule 4-202.04(4) and Utah case law do not burden the parties with the expansive notice requirements *Deseret News, et al.* seeks.

First, the intent of Rule 4-202.04 is to “establish the process for *accessing a court record* associated with a case.” (emphasis added). In this context, “court record” is defined as “a record prepared, owned, received, or retained by a court or the administrative office of the courts.” Utah

¹ Because another group of media entities have filed a similar request, Mr. Robinson refers to the October 30, 2025 requestors as *Deseret News, et al.* See Doc 164.

R. Jud. Admin. 4-202.01. When a motion or petition to reclassify a court record is filed by “a person with an interest in a court record,” it is governed by the rules of procedure applicable to the case. *Id.* In addition, “[t]he person filing the motion or petition [to reclassify] must serve any representative of the press who has requested notice in the case.” *Id.* 4-202.04(4). Finally, “[t]he court must conduct a closure hearing when a motion or petition to close a record is contested, when the press has requested notice of closure motions or petitions in a particular case, or when the court decides public interest in the record warrants a hearing.” *Id.* Mr. Robinson will comply with the notice requirement by filing a public version of any motion or petition to reclassify a court record under Rule 4-202.04, redacted as necessary.

However, this Court should strictly interpret the notice requirement in accordance with the plain language of the Rule. For example, Rule 4-202.04 does not require the movant to give notice of motions regarding “limitations on electronic media coverage.” Indeed, this Court may “terminate or suspend electronic media coverage at any time *without prior notice* if the judge finds that continued electronic media coverage is no longer appropriate. . .” *See* Utah R. Jud. Admin. 4-401.1(3) (emphasis added). Therefore, this Court should not require the parties to provide notice of such motions.

Second, Mr. Robinson acknowledges Utah Supreme Court precedent advises that notice of requests to close court proceedings be given to members of the media “who have made a written request for such notice in advance.” *Society of Prof’l Journalists v. Bullock*, 743 P.2d 1166, 1178 n.15 (Utah 1987) (citing *Kearns-Tribune Corp. v. Lewis*, 685 P.2d 515, 524 (Utah 1984)). To protect against potential claims “that proper notice was not given” the Court encourages the “party seeking closure” to “serve advance written notice of a closure motion upon the opposing party, the court, and any media representatives who have requested such notice.”

Id. Notably, notice may be accomplished by the “[t]he filing of a written notice of a closure motion” whereby “[i]nterested persons will be able to inform themselves of the pendency of the motion by the simple expedient of reviewing the court file.” *Id.*

In short, the notice anticipated by Rule 4-202.04 and the Utah Supreme Court is accomplished through publicly filing, subject to any appropriate redactions, any motions to reclassify court records or close proceedings.² Utah maintains an easily accessible online database allowing individuals, including the media, to download public criminal case filings. Mr. Robinson should not be burdened with rendering service beyond normal filing requirements.³

II. The Public Right to Access Must Give Way to Mr. Robinson’s Right to a Fair Trial.

The United States Supreme Court has “firmly established” that “the press and general public have a constitutional right of access to criminal trials” under the First Amendment. *See, e.g., Globe Newspaper Co. v. Superior Court for Norfolk County*, 457 U.S. 596, 603-04 (1982). The Utah Supreme Court likewise has “recognized a presumptive right” under article I, section 15, of the Utah Constitution encompassing press “access significant pretrial proceedings” in a criminal case. *See State v. Archuleta*, 857 P.2d 234, 239-40 (Utah 1993) (citations omitted). “That right has never been absolute, however.” *Id.*; *see also Globe Newspaper*, 457 U.S. at 606 (“Although the right of access to criminal trials is of constitutional stature, it is not absolute.”).

Indeed, “[w]hile open criminal proceedings give assurances of fairness to both the public and the accused, there are some limited circumstances in which the right of the accused to a fair

² Under Utah Rule of Judicial Administration 4-202.02, “Court records are public unless otherwise classified by this rule.”

³ It is evident that *Deseret News et al.* are able to access public filings. *See, e.g.,* Reavy, Pat, KSL.com, *Man accused of killing Charlie Kirk requests street clothes no shackles during hearings*, DESERET NEWS (posted 10/10/2025, 9:47 a.m. MDT), <https://www.deseret.com/utah/2025/10/10/man-accused-of-killing-charlie-kirk-requests-street-clothes-and-no-shackles-during-hearings/>.

trial might be undermined by publicity.” *Press-Enterprise Co. v. Superior Court*, 478 U.S. 1, 9 (1986). For example, the Utah Supreme Court has found that “allowing blanket inspection of [preliminary hearing] exhibits that must be preserved for a later trial if the defendant is bound over . . . will hinder, not further, the interests of the criminal process.” *Archuleta*, 857 P.2d at 242.

As the Court considers any requests made of the media regarding court record classification and objections to reclassification or closure motions, it is critical that this Court consider the “realistic likelihood of prejudice” to Mr. Robinson’s right to fair trial. *See Archuleta*, 857 P.2d at 240. To preserve a defendant’s right to a fair trial, trial courts have “an affirmative constitutional duty to minimize the effects of prejudicial pretrial publicity.” *Gannett Co. v. DePasquale*, 443 U.S. 368, 378 (1979); *see also Chandler v. Florida*, 449 U.S. 560, 574 (1981) (“Trial courts must be especially vigilant to guard against any impairment of the defendant's right to a verdict based solely upon the evidence and the relevant law”). In so doing, the United States Supreme Court has encouraged trial courts to “take such steps by rule and regulation that will protect their process from prejudicial outside interferences.” *Sheppard v. Maxwell*, 384 U.S. 333, 363 (1966).

The State of Utah is seeking the death penalty against Mr. Robinson. All participants in this proceeding have a duty to ensure that Mr. Robinson receives a fair trial and a reliable penalty proceeding. *See* U.S. Const. amend. XIII; Utah Const. art. I, § 9. This may, at times, necessitate closure of proceedings or classification of filings as private. As aptly stated by the First Circuit, “[t]he right to an impartial jury is nowhere as precious as when a defendant is on trial for his life.” *Sampson v. United States*, 724 F.3d 150, 163 (1st Cir. 2013).

CONCLUSION

Mr. Robinson will comply with the notice requirements in Rule 4-204 and as outlined by the Utah Supreme Court by publicly filing any motions to classify and/or to close any presumptively public proceedings, subject to any redactions that are necessary to protect his right to a fair trial and other constitutional rights and privacy interests.

RESPECTFULLY SUBMITTED this 10th day of November, 2025.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/ Michael N. Burt
Michael N. Burt

/s/ Richard G. Novak
Richard G. Novak

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 10th day of November, 2025, which served all attorneys of record.

/s/ Staci Visser